.4.3 contribute overall to additional air pollution.

4. This regulation does not apply to coal in its solid form or nuclear fuels. Paragraphs 5.1, 8.1 and 8.2 of this regulation do not apply to a low-flashpoint fuel or a gas fuel.

5.1 For each ship subject to regulations 5 and 6 of this Annex, details of fuel oil delivered to and used on board that ship shall be recorded by means of a bunker delivery note that shall contain at least the information specified in appendix V.

5.2 For each ship subject to regulations 5 and 6 of this Annex, details of low -flashpoint fuel or gas fuel delivered to and used on board that ship shall be recorded by means of a bunker delivery note that shall include at least the information specified in i tems 1 to 6 of appendix V, the density as determined by a test method appropriate to the fuel type together

with the associated temperature and a declaration signed and certified by the fuel oil supplier's

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with the associated temperature and a declaration signed and certified by the fuel oil supplier's representative that the fuel oil is in conformity with paragraph 3 of this regulation. In addition the sulphur content of a low-flashpoint fuel or a gas fuel delivered to a ship specifically for use on board that ship shall be documented on the bunker delivery note by the supplier in terms of either the actual value as determined by a test method appropriate to the fuel type or, with the agreement of the approp riate authority at the port of supply, a statement that the sulphur content, when tested by such a method, is less than 0.001% m/m.

6 The bunker delivery note shall be kept on board the ship in such a place as to be readily available for inspection at all reasonable times. It shall be retained for a period of three years after the fuel oil has been delivered on board.

7.1 The competent authority of a Party may inspect the bunker delivery notes on board any ship to which this Annex applies while the ship is in its port or offshore terminal, may make

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years after the fuel oil has been delivered on board.

7.1 The competent authority of a Party may inspect the bunker delivery notes on board any ship to which this Annex applies while the ship is in its port or offshore terminal, may make a copy of each delivery note, and may require the master or person in charg e of the ship to certify that each copy is a true copy of such bunker delivery note. The competent authority may

also verify the contents of each note through consultations with the port where the note was issued.

7.2 The inspection of the bunker delivery notes and the taking of certified copies by the competent authority under paragraph 7.1 of this regulation shall be performed as expeditiously as possible without causing the ship to be unduly delayed.

8.1 The bunker delivery note shall be accompanied by a representative sample of the fuel oil delivered taking into account the guidelines developed by the Organization. 44 The sample is to be sealed and signed by the supplier's representative and the master or officer in charge of the bunker operation on completion of bunkering operations and retained under the ship's

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is to be sealed and signed by the supplier's representative and the master or officer in charge of the bunker operation on completion of bunkering operations and retained under the ship's control until the fuel oil is substantially consumed, b ut in any case for a period of not less than 12 months from the time of delivery.

8.2 If a Party requires the representative sample to be analysed, it shall be done in accordance with the verification procedure set forth in appendix VI to determine whether the fuel oil meets the requirements of this Annex.

9 Parties undertake to ensure that appropriate authorities designated by them:

.1 maintain a register of local suppliers of fuel oil;

.2 require local suppliers to provide the bunker delivery note and, if applicable, the MARPOL delivered sample as required by this regulation, certified by the fuel oil supplier that the fuel oil meets the requirements of regulations 14 and 18 of this Annex;

.3 require local suppliers to retain a copy of the bunker delivery note for at least three years for inspection and verification by the port State as necessary;

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18 of this Annex;

.3 require local suppliers to retain a copy of the bunker delivery note for at least three years for inspection and verification by the port State as necessary;

.4 take action as appropriate against fuel oil suppliers that have been found to deliver fuel oil that does not comply with that stated on the bunker delivery note;

44 Refer to the Guidelines for the sampling of fuel oil for determination of compliance with MARPOL Annex VI and SOLAS chapter II-2 (circular MSC-MEPC.2/Circ.18).

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.5 inform the Administration of any ship receiving fuel oil found to be non-compliant with the requirements of regulation 14 or 18 of this Annex; and

.6 inform the Organization for circulation to Parties and Member States of the Organization of all cases where fuel oil suppliers have failed to meet the requirements specified in regulations 14 or 18 of this Annex.

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.6 inform the Organization for circulation to Parties and Member States of the Organization of all cases where fuel oil suppliers have failed to meet the requirements specified in regulations 14 or 18 of this Annex.

10 In connection with port State inspections carried out by Parties, the Parties further undertake to:

.1 inform the Party or non-Party under whose jurisdiction a bunker delivery note was issued of cases of delivery of non -compliant fuel oil, giving all relevant information; and

.2 ensure that remedial action as appropriate is taken to bring non -compliant fuel oil discovered into compliance.

11 For every ship of 400 gross tonnage and above on scheduled services with frequent and regular port calls, an Administration may decide after application and consultation with affected States that compliance with paragraph 6 of this regulation may be documented in an alternative manner that gives similar certainty of compliance with regulations 14 and 18 of this Annex.

Chapter 4 Regulations on the carbon intensity of international shipping

Regulation 19
Application

1 This chapter shall apply to all ships of 400 gross tonnage and above.

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Annex.

Chapter 4 Regulations on the carbon intensity of international shipping

Regulation 19
Application

1 This chapter shall apply to all ships of 400 gross tonnage and above.

2 The provisions of this chapter shall not apply to:

.1 ships solely engaged in voyages within waters subject to the sovereignty or jurisdiction of the State the flag of which the ship is entitled to fly. However, each Party should ensure, by the adoption of appropriate measures, that such ships are constructe d and act in a manner consistent with the requirements of chapter 4 of this Annex, so far as is reasonable and practicable.

.2 ships not propelled by mechanical means, and platforms including FPSOs and FSUs and drilling rigs, regardless of their propulsion.

3 Regulations 22, 23, 24 and 25 of this Annex shall not apply to ships which have non-conventional propulsion, except that regulations 22 and 24 shall apply to cruise passenger ships having non -conventional propulsion and LNG carriers having conventional or non-conventional propulsion, delivered on or after 1 September 2019, as defined in

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ships having non -conventional propulsion and LNG carriers having conventional or non-conventional propulsion, delivered on or after 1 September 2019, as defined in regulation 2.2.1, and regulations 23 and 25 shall apply to cruise passenger ships having non-conventional propulsion and LNG carriers having conventional or non -conventional